

CHAPTER 16.

An Act to authorise the making of such modifications in the Workmen's Compensation Act, 1906, in its application to French Citizens, as may be necessary to give effect to a Convention between His Majesty and the President of the French Republic.

[20th October 1909.]

WHEREAS His Majesty the King and the President of the French Republic have concluded the Convention set out in the Schedule to this Act, but effect cannot be given to the Convention unless certain modifications are made in the Workmen's Compensation Act, 1906, so far as it applies to workmen who are French citizens.

6 Edw. 7. c. 58.

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Power to make modifications in Workmen's Compensation Act in its application to French citizens.

1. His Majesty may, by Order in Council, make such modifications in the Workmen's Compensation Act, 1906, in its application to workmen who are French citizens, as appear to him to be necessary to give effect to the said Convention ; and the Workmen's Compensation Act, 1906, shall apply to such workmen, subject to the modifications contained in the Order.

Short title.

2. This Act may be cited as the Workmen's Compensation (Anglo-French Convention) Act, 1909.

SCHEDULE.

CONVENTION SIGNED AT PARIS THE 3RD DAY OF JULY 1909.

ARTICLE 1.

British subjects who meet with accidents arising out of their employment as workmen in France, and persons entitled to claim through or having rights derivable from them, shall enjoy the benefits of the compensation and guarantees secured to French citizens by the legislation in force in France in regard to the liability of employers in respect of such accidents.

Reciprocally, French citizens who meet with accidents arising out of their employment as workmen in the United Kingdom of Great Britain and Ireland, and persons entitled to claim through or having rights derivable from them, shall enjoy the benefits of the compensation and guarantees secured to British subjects by the legislation in force in the United Kingdom of Great Britain and Ireland in regard to compensation for such accidents, supplemented as specified in Article 5.

ARTICLE 2.

Nevertheless, the present Convention shall not apply to the case of a person engaged in a business having its headquarters in one of the two Contracting States, but temporarily detached for employment in the other Contracting State, and meeting with an accident in the course of that employment, if at the time of the accident the said employment has lasted less than six months. In this case the persons interested shall only be entitled to the compensation and guarantees provided by the law of the former State.

The same rule shall apply in the case of persons engaged in transport services and employed at intervals, whether regular or not, in the country other than that in which the headquarters of the business are established.

ARTICLE 3.

The British and French authorities will reciprocally lend their good offices to facilitate the administration of their respective laws as aforesaid.

ARTICLE 4.

The present Convention shall be ratified, and the ratifications shall be exchanged at Paris, as soon as possible.

It shall be applicable in France and in the United Kingdom of Great Britain and Ireland to all accidents happening after one month from the time of its publication in the two countries in the manner prescribed by their respective laws, and it shall remain binding until the expiration of one year from the date on which it shall have been denounced by one or other of the two Contracting Parties.

ARTICLE 5.

Nevertheless, the ratification mentioned in the preceding Article shall not take place till the legislation at present in force in the United Kingdom of Great Britain and Ireland in regard to workmen's compensation has been supplemented, so far as concerns accidents to French citizens arising out of their employment as workmen, by arrangements to the following effect :—

- (a) That the compensation payable shall in every case be fixed by an award of the County Court :
- (b) That in any case of redemption of weekly payments the total sum payable shall, provided it exceeds a sum equivalent to the capital value of an annuity of 4*l.* (100 fr.), be paid into Court, to be employed in the purchase of an annuity for the benefit of the person entitled thereto :
- (c) That in those cases in which a lump sum representing the compensation payable shall have been paid by the employer into the County Court, if the injured workman returns to reside in France, or if the dependants resided in France at the time of his death or subsequently return to reside in France, the total sum due to the injured workman or to his dependants shall be paid over through the County Court to the "Caisse Nationale Française des Retraites pour la Vieillesse," who shall employ it in the purchase of an annuity according to its tariff at the time of the payment ; and further, that, in the case in which a lump sum shall not have been paid into Court, and the injured workman returns to reside in France, the compensation shall be

remitted to him through the County Court at such intervals and in such way as may be agreed upon by the competent authorities of the two countries :

- (d) That in respect of all the acts done by the County Court in pursuance of the legislation in regard to workmen's compensation, as well as in the execution of the present Convention, French citizens shall be exempt from all expenses and fees :
- (e) That at the beginning of each year His Majesty's principal Secretary of State for the Home Department will send to the "Département du Travail et de la Prévoyance sociale" a record of all judicial decisions given in the course of the preceding year under the legislation in regard to workmen's compensation in the case of French citizens injured by accident in the United Kingdom of Great Britain and Ireland.

CHAPTER 17.

An Act to enable the London County Council to establish and maintain an Ambulance Service in London.

[20th October 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Power to London County Council to establish and maintain ambulance service.

1. It shall be lawful for the London County Council to establish and maintain, or to contribute towards the cost of, or otherwise to aid in establishing or maintaining, an ambulance service for dealing with cases of accidents or illness (other than infectious diseases) within the county of London, exclusive of the city of London, and for such purposes—

- (1) To employ such persons as they may think expedient :
- (2) To appropriate any lands and buildings for the time being vested in them :
- (3) To acquire any lands or buildings within the county :
- (4) To erect, maintain, and manage, on any lands so appropriated and acquired, any buildings for the said purpose :
- (5) To adapt, furnish, and equip any buildings so appropriated, acquired, or erected :
- (6) To contract with the Postmaster-General for the establishment and maintenance of telegraphic, telephonic, and other suitable means of communication :
- (7) To provide and maintain ambulances and other vehicles and means of conveyance, to be drawn by electrical or other mechanical power, by horse, or by hand :

Provided that any electrical power used for moving any such vehicle shall be entirely contained in and carried along with such vehicle.